

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sara Griffin	Team: Squad #10	CCRB Case #: 201609067	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 12/07/2015 4:27 PM	Location of Incident: Bell Boulevard and 56th Avenue	18 Mo. SOL 6/7/2017	Precinct: 111		
Date/Time CV Reported Fri, 10/28/2016 4:08 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 10/28/2016 4:08 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Sean Buchanan	11740	956464	111 PCT
2. POM Matthew Hemberger	11888	949092	111 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Sean Buchanan	Discourtesy: Police Officer Sean Buchanan acted discourteously towards § 87(2)(b)	A . Unsubstantiated
B . POM Matthew Hemberger	Discourtesy: Police Officer Matthew Hemberger acted discourteously towards § 87(2)(b)	B . Unsubstantiated
C . POM Sean Buchanan	Discourtesy: Police Officer Sean Buchanan acted discourteously towards § 87(2)(b)	C . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On December 7, 2015, at approximately 4:27 p.m., § 87(2)(b) was driving alone on Bell Boulevard in Queens when he felt the immediate urge to use the bathroom. § 87(2)(b) Up ahead, a vehicle was backing out of a long driveway and § 87(2)(b) did not believe he would be able to wait for the vehicle to finish backing up before he urinated or defecated on himself. § 87(2)(b) began to honk his horn several times to get the attention of the motorist ahead. The motorist yielded and motioned for § 87(2)(b) to pass on the right. Shortly after passing the vehicle, § 87(2)(b) was pulled over. PO Matthew Hemberger and PO Sean Buchanan of the 111th Precinct exited their vehicle. PO Hemberger approached the driver's side and PO Buchanan approached the passenger's side. § 87(2)(b) was hunched over the steering wheel in an attempt to not defecate on himself. PO Hemberger allegedly stated, "Oh now you are sick. You weren't sick when you were honking on your horn." § 87(2)(b) replied, "I am sick. § 87(2)(b) I am trying to keep from shitting in my pants. I'm holding it in. I'm trying not to shit or piss in my pants. Give me a minute." PO Hemberger and PO Buchanan allegedly began to laugh between each other at § 87(2)(b) (**Allegation A and B**). PO Hemberger requested § 87(2)(b)'s information, which he provided. PO Hemberger and PO Buchanan returned to their vehicle. About 5 minutes later, PO Buchanan approached § 87(2)(b)'s driver's window and allegedly threw the summons through the driver's window hitting § 87(2)(b) in the chest (**Allegation C**). PO Buchanan allegedly did not make any attempt to hand the summons to § 87(2)(b).

§ 87(2)(b) was issued summons #§ 87(2)(b) for unsafe passing/overtaking.

There is no video footage of the incident.

Mediation, Civil and Criminal Histories

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(a) 18 USC § 2721 (a)
- § 87(2)(b) refused mediation § 87(2)(b).
- As of December 13, 2016, an inquiry into the New York City's Comptroller's Office revealed that no notice of claim was filed by § 87(2)(b).

Civilian and Officer CCRB Histories

- § 87(2)(b) filed three prior CCRB complaints, § 87(2)(b)
- PO Sean Buchanan has been a member of the NYPD for 2 years. PO Buchanan has no prior CCRB cases (Board Review 3).
- PO Matthew Hemberger has been a member of the NYPD for 6 years. PO Hemberger has no prior CCRB cases (Board Review 4).

Findings and Recommendations

Allegation A -Discourtesy: Police Officer Sean Buchanan acted discourteously towards § 87(2)(b)

Allegation B- Discourtesy: Police Officer Matthew Hemberger acted discourteously towards § 87(2)(b)

It is undisputed that PO Buchanan and PO Hemberger stopped § 87(2)(b)'s vehicle after he committed a moving traffic violation. § 87(2)(g)

§ 87(2)(b) testified that right before being pulled over he felt the immediate urge to use the restroom. § 87(2)(b)

When PO Hemberger approached § 87(2)(b)'s window, § 87(2)(b) was hunched over the steering wheel, in an attempt to stop himself from defecating. PO Hemberger said, "Oh now you are sick. You weren't sick when you were honking your horn." § 87(2)(b) replied, "I am sick. § 87(2)(b). I'm trying to keep from shitting in my pants. I'm holding it in. I'm trying not to shit or piss in my pants. Give me a minute." § 87(2)(b) then urinated on himself. PO Hemberger and PO Buchanan allegedly began to laugh between each other at § 87(2)(b) (Board Review 5).

PO Hemberger testified that § 87(2)(b) was sitting upright in the driver's seat when he approached the driver's side of the vehicle. PO Hemberger did not recall hearing § 87(2)(b) make a statement about being sick. § 87(2)(b) PO Hemberger did not hear § 87(2)(b) say he was in any sort of physical distress. PO Hemberger did not hear § 87(2)(b) make any comment related to urinating or defecating on himself. PO Hemberger denied that he or PO Buchanan laughed at § 87(2)(b) or at comments § 87(2)(b) made regarding his illness (Board Review 6).

PO Buchanan testified that he approached the passenger side of § 87(2)(b)'s vehicle. PO Buchanan did not recall § 87(2)(b)'s position at the steering wheel. PO Buchanan recalled § 87(2)(b) making a comment about being sick and receiving treatment but did not remember § 87(2)(b) specifically stating § 87(2)(b). PO Buchanan did not recall if he or PO Hemberger responded to § 87(2)(b)'s comment about being sick. PO Buchanan originally did not recall if he or PO Hemberger laughed at § 87(2)(b) or comments § 87(2)(b) made regarding his illness, but later stated that he believed that they did not (Board Review 7).

§ 87(2)(f)

§ 87(2)(g) Therefore, it is recommended that **Allegation A** and **Allegation B** be closed as **Unsubstantiated**.

Allegation C-Discourtesy: PO Sean Buchanan acted discourteously towards § 87(2)(b)

It is undisputed that PO Sean Buchanan issued § 87(2)(b) a summons for unsafe passing/overtaking. § 87(2)(g)

§ 87(2)(b) testified that he was sitting in his vehicle when PO Buchanan approached the driver's side window and PO Hemberger stood behind PO Buchanan. PO Buchanan threw the summons through the driver window, hitting § 87(2)(b) in the chest before the summons fell into his lap. PO Buchanan made no attempt to hand § 87(2)(b) the summons. PO Buchanan turned around and walked back to the police vehicle without speaking to § 87(2)(b) (Board Review 5).

PO Buchanan testified that he was the officer who issued the summons to § 87(2)(b) PO Buchanan did not recall the manner in which he physically issued the summons to § 87(2)(b) PO Buchanan denied that he threw the summons at § 87(2)(b) through the driver's window. PO Buchanan originally stated that he did not believe that he spoke to § 87(2)(b) when issuing him the summons, but later stated he did not recall (Board Review 7).

PO Hemberger testified that PO Buchanan approached the driver's side window and he stood at the rear driver's side tire. PO Buchanan physically handed the summons to § 87(2)(b) who physically took the summons from PO Buchanan. PO Hemberger denied that PO Buchanan threw the summons through the window. PO Hemberger believed PO Buchanan informed § 87(2)(b) of the infraction he was being summonsed for, but did not recall the extent or the context of the conversation PO Buchanan had with § 87(2)(b) while issuing the summons (Board Review 6).

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **Unsubstantiated**.

§ 87(4-b), § 87(2)(g)

Squad: 10

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date